

ASCII MASTER FLOW – PANEL 1/12: Responsible State executive: legal form and democratic command

ARTICLES 153-167

People -> Legislative Assembly -> confidence -> CM + Council -> real executive

Governor -> constitutional State head -> formal acts and continuity

ARTICLE MAP

153 office | 154 power | 155 appointment | 156 pleasure | 157-159 conditions/oath

161 clemency | 163 advice/discretion | 164 ministry | 165 AG | 166 business | 167 CM duties

CORE RULE

Union appointment creates a federal link, not authority to govern as a Central party agent.

MUST REMEMBER: Teach Articles 153-167 office by office, then separate aid and advice, express or necessarily implied discretion, government formation, floor tests, Article 356 reporting, assent, ordinance and clemency.

ASCII MASTER FLOW – PANEL 2/12: Appointment, conditions, immunity and pleasure tenure

ENTRY: President appoints by warrant -> citizen + 35 -> Article 159 oath

CONDITIONS: no legislative seat or other office of profit; emoluments protected.

COMMON GOVERNOR: Article 153 proviso allows one person for multiple States.

ARTICLE 156

five-year outer term + President pleasure + resignation + holdover until successor.

B.P. Singhal (2010): no arbitrary, capricious, unreasonable or mala fide removal;

no guaranteed five-year lease and no routine duty to disclose reasons.

ARTICLE 361: personal temporary immunity; underlying government action remains reviewable.

ASCII MASTER FLOW – PANEL 3/12: Complete power classification and source control

EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

LEGISLATIVE: 168, 171, 174-176, 200 and 213.

FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.

CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.

SPECIAL: Article 356 report; constitutionally specified responsibilities.

STATUTORY: university Chancellor only where State law provides.

TRAPS: Governor does not appoint HC judges or nominate Assembly members.

ASCII MASTER FLOW – PANEL 4/12: Aid and advice, discretion and special responsibilities

DEFAULT -> Shamsher Singh (1974): CM-led Council advice controls.

EXCEPTION -> express text or necessary implication; discretion remains purpose-bound.

BOUNDED FIELDS

hung-House appointment | objective floor-test doubt | Article 200 reservation

Article 356 report | UT additional charge | constitutionally specified responsibilities.

SPECIAL TEXTS

Article 371A(1)(b): Nagaland law and order | 371H(a): Arunachal law and order

individual judgment after consulting Council; Sixth Schedule assigns specified functions.

LIMIT: exceptional State texts do not create general discretion for every Governor.

ASCII MASTER FLOW – PANEL 5/12: Case-law ladder: from advice to objective material

Shamsher Singh (1974) -> constitutional head; advice is norm

S.R. Bommai (1994) -> Article 356 review; House floor ordinarily tests majority

Rameshwar Prasad (2006) -> speculative horse-trading cannot justify dissolution

B.P. Singhal (2010) -> pleasure survives; arbitrary removal does not

Nabam Rebia (2016) -> Articles 174-175 normally advice-bound

Subhash Desai (2023) -> objective material; no intra-party arbitration by floor test

CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

ASCII MASTER FLOW – PANEL 6/12: Government formation, floor test, dismissal and dissolution

CLEAR MAJORITY -> appoint recognised leader -> ordinary responsible government.

HUNG HOUSE -> invite credible confidence claimant -> early floor test -> no secret count.

LATER DOUBT -> objective material -> prompt floor test in Assembly.

AFTER TEST

confidence retained -> ministry continues

confidence lost -> resignation/dismissal -> test alternative -> dissolution only if needed.

CARETAKER -> continuity with restraint, not a fresh policy mandate.

Subhash Desai (2023): factional dissent alone insufficient.

Rameshwar Prasad (2006): anticipated misconduct cannot replace House process.

CLOSE DISTINCTION: Apply Shamsher Singh (1974), S.R. Bommai (1994), Rameshwar Prasad (2006), B.P. Singhal, Nabam Rebia (2016) and Subhash Desai (2023) only for their stated propositions. Article 200 discretion does not create general gubernatorial discretion.

ASCII MASTER FLOW – PANEL 7/12: Article 356 report and the federal firewall

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

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v

PRESIDENTIAL PROCLAMATION -> parliamentary approval -> temporary consequences

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v

JUDICIAL REVIEW UNDER S.R. BOMMAI (1994)

relevance | mala fides | constitutional purpose | possible restoration

FLOOR-TEST PRIORITY

A majority dispute ordinarily belongs in the House, not in Raj Bhavan's assessment.

TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ASCII MASTER FLOW – PANEL 8/12: Articles 200-201 and the 2025 assent control

ARTICLE 200

assent | withhold | return non-Money Bill once | reserve for President
mandatory reservation: Bill endangers High Court constitutional powers.
After repassage Governor cannot return again; exact remaining route is text-specific.

ARTICLE 201

President: assent | withhold | direct return of non-Money Bill through Governor
repassage does not compel presidential assent.

2025 CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent
In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines
or automatic deemed assent; prolonged unexplained inaction remains reviewable.

ASCII MASTER FLOW – PANEL 9/12: Ordinance power and clemency comparison

ARTICLE 213

required House(s) not in session + immediate necessity -> ordinance with Act-like force

-> must be laid -> expires six weeks after reassembly unless approved earlier.

D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.

Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

ARTICLE 161 V ARTICLE 72

Governor: State-field offences; may pardon death within that field; no court-martial limb.

President: court-martial, Union-field offences and every death sentence.

Both ordinarily act on advice and remain reviewable for recognised defects.

ASCII MASTER FLOW – PANEL 10/12: Chief Minister, Article 167 and State Council

GOVERNOR APPOINTS CM -> CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers -> allocates portfolios -> coordinates policy -> advises Governor.

ARTICLE 167 -> communicate Council decisions, furnish information, collectivise decisions.

COUNCIL UNDER ARTICLES 163-164

appoint ministers on CM advice | collective responsibility to Assembly

individual pleasure is mediated by CM advice and confidence | non-member: maximum six months.

91ST AMENDMENT

ministers $\leq 15\%$ of Assembly, minimum 12; defector bar under Article 164(1B).

ASCII MASTER FLOW – PANEL 11/12: Tribal minister, Advocate General, business and comparison

TRIBAL WELFARE MINISTER

required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.

ARTICLE 165 -> Advocate General: HC-judge qualification; advises State government.

ARTICLE 166 -> authentication and business-allocation rules; not personal Governor policy.

PRESIDENT v GOVERNOR

both constitutional heads | Article 74 differs textually from 163

Article 72 wider than 161 | Governor reserves State Bills under 200

Governor has State-specific special responsibilities; neither difference creates general discretion.

CHANCELLOR: statute-specific, not inherent constitutional office.

ASCII MASTER FLOW – PANEL 12/12: Federal neutrality, reforms, PYQs and answer synthesis

FAULT LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE

constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation

NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests

All are proposals unless enacted.

PRELIMS: elected? NO | guaranteed five years? NO | general discretion? NO

Money Bill return? NO | Chancellor constitutional? NO | Article 361 = State immunity? NO.

MAINS SPINE

text -> advice default -> exceptional trigger -> case + year -> federal risk

-> matched reform -> neutral constitutional-head conclusion.

LEGAL/SOURCE LIMIT: The 20 November 2025 Article 143 opinion gives three Article 200 options, rejects rigid timelines and deemed assent, and permits only limited mandamus against prolonged unexplained indefinite inaction. Article 161 can include pardon of a death sentence where the offence-law nexus lies within State executive power; court-martial remains outside it.